

COMMISSION IMPLEMENTING DIRECTIVE 2014/83/EU

CELEX id	32014L0083
Document type	Directive
Policy domain	Geography
Year	2014
Legal actor type	Public agency
Applicable role	Operator
Language	en

COMMISSION IMPLEMENTING DIRECTIVE 2014/83/EU

of 25 June 2014

amending Annexes I, II, III, IV and V to Council Directive 2000/29/EC on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Directive 2000/29/EC of 8 May 2000 on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community (1), and in particular points (c) and (d) of the second paragraph of Article 14 thereof,

After consulting the Member States concerned,

Whereas:

(1)

Certain parts of the territory of Portugal were recognised as a protected zone with respect to *Bemisia tabaci* Genn. (European populations). Portugal has submitted information showing that *Bemisia tabaci* is now established in Madeira. The measures taken in 2013 with a view to the eradication of that harmful organism have proven to be ineffective. Madeira should therefore no longer be recognised as part of the protected zone of Portugal in respect of *Bemisia tabaci*. Parts B of Annexes I and IV to Directive 2000/29/EC should be amended accordingly.

(2)

Certain parts of the territory of Spain were recognised as a protected zone with respect to *Erwinia amylovora* (Burr.) Winsl. et al.. Spain has submitted information showing that *Erwinia amylovora* is now established in the autonomous community of Aragón, the Comarcas de L'Alt Vinalopó and El Vinalopó Mitjà in the province of Alicante and the municipalities of Alborache and Turís in the province of Valencia (Comunidad Valenciana). The measures taken in 2013 with a view to the eradication of that harmful organism have proven to be ineffective. The autonomous community of Aragón, the Comarcas de L'Alt Vinalopó and El Vinalopó Mitjà in the province of Alicante and the municipalities of Alborache and Turís in the province of Valencia (Comunidad Valenciana) should therefore no longer be recognised as part of the protected zone of Spain in respect of *Erwinia amylovora*. Parts B of Annexes II, III and IV to Directive 2000/29/EC should be amended accordingly.

(3)

The entire territory of Ireland was recognised as a protected zone with respect to *Erwinia amylovora* (Burr.) Winsl. et al.. Ireland has submitted information showing that *Erwinia amylovora* is now established in Galway city. The measures were taken between 2005 and 2013 with a view to the eradication of that

harmful organism but have proven to be ineffective. The city of Galway should therefore no longer be recognised as part of the protected zone of Ireland in respect of *Erwinia amylovora*. Parts B of Annexes II, III and IV to Directive 2000/29/EC should be amended accordingly.

(4)

The entire territory of Lithuania was recognised as a protected zone with respect to *Erwinia amylovora* (Burr.) Winsl. et al.. Lithuania has submitted information showing that *Erwinia amylovora* is now established in the municipalities of Kėdainiai and Babtai (region of Kaunas). The measures taken for a period of two successive years, 2012 and 2013, with a view to the eradication of that harmful organism have proven to be ineffective. The municipalities of Kėdainiai and Babtai (region of Kaunas) should therefore no longer be recognised as part of the protected zone of Lithuania in respect of *Erwinia amylovora*. Parts B of Annexes II, III and IV to Directive 2000/29/EC should be amended accordingly.

(5)

Certain parts of the territory of Slovenia were recognised as a protected zone with respect to *Erwinia amylovora* (Burr.) Winsl. et al.. Slovenia has submitted information showing that *Erwinia amylovora* is now established in the communes of Renče-Vogrsko (south from the highway H4) and Lendava. The measures taken for a period of two successive years, 2012 and 2013, with a view to the eradication of that harmful organism have proven to be ineffective. The communes of Renče-Vogrsko (south from the highway H4) and Lendava should therefore no longer be recognised as part of the protected zone of Slovenia in respect of *Erwinia amylovora*. Parts B of Annexes II, III and IV to Directive 2000/29/EC should be amended accordingly.

(6)

Certain parts of the territory of Slovakia were recognised as a protected zone with respect to *Erwinia amylovora* (Burr.) Winsl. et al.. Slovakia has submitted information showing that *Erwinia amylovora* is now established in the commune of Senkovce (Dunajská Streda County). The measures taken for a period of two successive years, 2012 and 2013, with a view to the eradication of that harmful organism have proven to be ineffective. The commune of Senkovce (Dunajská Streda County) should therefore no longer be recognised as part of the protected zone of Slovakia in respect of *Erwinia amylovora*. Parts B of Annexes II, III and IV to Directive 2000/29/EC should be amended accordingly.

(7)

The scientific denomination of the harmful organism *Ceratocystis fimbriata* f. spp. *platani* Walter should be amended in line with the revised scientific denomination of the organism and should be referred to as *Ceratocystis platani* (J. M. Walter) Engelbr. & T. C. Harr. Annexes II and IV of Directive 2000/29/EC should be aligned.

(8)

Ceratocystis platani (J. M. Walter) Engelbr. & T. C. Harr. is now known to occur in Switzerland. Section I of Part A of Annex IV and point I of Part B of Annex V to Directive 2000/29/EC should be amended accordingly.

(9)

In the light of developments in scientific knowledge, it is to be considered that, as regards wood of *Platanus* L., debarking does not obviate the pest risk associated with *Ceratocystis platani* (J. M. Walter) Engelbr. & T. C. Harr. Section I of Part A of Annex IV to Directive 2000/29/EC should be amended accordingly.

(10)

In view of the risk posed by *Ceratocystis platani* (J. M. Walter) Engelbr. & T. C. Harr., it is technically justified, to include that harmful organism in Part B of Annex II to Directive 2000/29/EC in order to protect the production and trade of plants and plant products in certain endangered areas.

(11)

The United Kingdom has requested that its territory be recognised as a protected zone in respect of *Ceratocystis platani* (J.M. Walter) Engelbr. & T.C. Harr.. On the basis of surveys conducted between 2010 and 2013, the United Kingdom has submitted evidence that the harmful organism concerned does not occur in its territory, despite favourable conditions for that organism to establish itself there. It is, however, necessary that further surveys be carried out. Those surveys should be monitored by experts under the authority of the Commission. Therefore, the United Kingdom should be recognised as a protected zone in respect of *Ceratocystis platani* only until 30 April 2016. Parts B of Annexes II and IV to Directive 2000/29/EC should be therefore amended accordingly. Similarly, Part B of Annex IV and Part A.II of Annex V to Directive 2000/29/EC should be amended to introduce requirements for the movement of certain plants, plant products and other objects into the protected zones.

(12)

Annexes I, II, III, IV and V to Directive 2000/29/EC should therefore be amended accordingly.

(13)

The measures provided for in this Directive are in accordance with the opinion of the Standing Committee on Plant Health,

HAS ADOPTED THIS DIRECTIVE:

Article 1

Annexes I, II, III, IV and V to Directive 2000/29/EC are amended in accordance with the Annex to this Directive.

Article 2

Member States shall adopt and publish, by 30 September 2014 at the latest, the laws, regulations and administrative provisions necessary to comply with this Directive. They shall forthwith communicate to the Commission the text of those provisions.

They shall apply those provisions from 1 October 2014.

When Member States adopt those provisions, they shall contain a reference to this Directive or be accompanied by such a reference on the occasion of their official publication. Member States shall determine how such reference is to be made.

Article 3

This Directive shall enter into force on the third day following that of its publication in the Official Journal of the European Union.

Article 4

This Directive is addressed to the Member States.

Done at Brussels, 25 June 2014.